

**Placer County Superior Court
10820 Justice Center Drive, Roseville**

**PROBATE CALENDAR NOTES
September 21, 2026, 8:30 AM, Department 2
101 Maple Street, Auburn**

**Published September 17, 2026, noon
Updated (final) September 18, 2026, 3:00 PM**

These calendar notes are provided pursuant to Local Rule 80.1.4 for the probate calendar set for hearing **September 21, 2026, 8:30 AM, in Department 2**, the Hon. Glenn M. Holley, presiding.

Pursuant to Local Rule 80.1.4, these calendar notes are **not** a tentative ruling on the merits of any matter before the court. Remote appearances are generally available for this calendar, as provided in the Local Rules. Local Rule 10.24(G), governing remote appearances for most probate, conservatorship, and guardianship cases applies to this calendar.

Updated notes may be posted at any time and will generally be updated prior to the hearing. Staff may respond to limited questions concerning calendar notes; however, court staff may not give legal advice to parties or attorneys. Messages may be left for the Office of Legal Research at (916) 408-6119.

1. S-PR-0006863 Nute, Jean K. - In Re the Estate of

Appearance is required for continued estate status hearing.

Current status is needed.

This is the **eleventh** status hearing since January 2018.

2. S-PR-0012485 In Re the Estate of Entrekin, James Harrison

Appearance is required for continued hearing on petition for final distribution.

It is recommended the request for extraordinary attorney fees be denied. The court has previously determined that the fee agreement for fees in excess of ordinary fees is void

under Prob.C. § 10813. Services relating to recovery of misappropriated property appears to include only the 2012 Hyundai, appraised at \$3,500, and miscellaneous furniture, appraised at \$500. Incurring \$6,688.55 in extraordinary fees is not justifiable to recover only \$4,000 in value to the estate. Other claimed extraordinary services related to "debunking" a purported will; however, no person ever sought to probate such a will. The benefit of such services to the estate is thus unclear. The extraordinary fees request is not supported by any showing that conforms to the requirements of C.R.C. 7.702–7.703.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the court and the parties to prepare for the hearing. Local Rule 80.1.4.

3. S-PR-0012507 In Re the Estate of Mordvinkin, Maria

Petition for final distribution is recommended for approval as prayed.

4. S-PR-0012756 In Re the Estate of Bohanon, James Iver

Petition to administer estate (C Patterson)

Appearance is required for continued hearing on petition to administer estate (C Patterson).

Current status is needed.

Will contest (P Smith)

Appearance is required for continued hearing on will contest (P Smith).

Current status is needed.

Petition to administer estate (P Smith)

Appearance is required for continued hearing on petition to administer estate.

Current status is needed.

5. S-PR-0013487 In Re the Estate of McCreery, Kristofer

Appearance is required for continued hearing on motion to compel further RPD responses.

Current status is needed.

6. S-PR-0013696 In Re the Mary Evelyn Carson Rev Trust

It is recommended the petition for instructions be continued to February 22, 2027, 8:30 a.m., in Department 2, on the recommendation of counsel for petitioner.

7. S-PR-0013734 In Re the Estate of Dorer, Ronald Lee

Clarification is needed: this is a non-cash estate. Petitioner should explain how requested attorney fees and costs are to be paid. The court will not ordinarily order payment of fees and costs where there are no available cash assets to pay them.

8. S-PR-0013933 In Re the Estate of Forcier, Dawn

Appearance is required for continued hearing on petition to administer estate. Petitioner's response is needed: a purported will of decedent was lodged with the court March 20, 2026.

Missing proof of publication of notice of hearing for petition to administer estate.

Note: petitioner appears to have requested dismissal of the action. The clerk will not ordinarily process a dismiss where letters—here, letters of special administration—have been issued. Grounds to dismiss are needed.

A pending stipulation seeks an order dismissing the pending petition for administration in light of the appointment of a special administrator. Special administration is appropriate where "the circumstances of the estate require the immediate appointment of a personal representative" to act "for the preservation of the estate." Prob.C. § 8540. Generally, special administration will terminate by operation of law upon the appointment of a general administrator. Prob.C. § 8546(a). Special administration is thus intended to complement—not to supplant—general estate administration. If no general estate administration is pending, it is recommended special administration be vacated.

9. S-PR-0014170 In Re the Estate of Nelson, Shirley J.

Amended petition was filed September 18 but has not been reviewed due to its late filing. Amended petition requires complete re-noticing (15 days' service to all persons entitled to notice. Note: petitioner, as a party to the action, may not serve notice and papers. They must be served by some 18 or older who is not a party to the action.

It is recommended this matter be continued to a date no earlier than 4 weeks from the date of the hearing.

10. S-PR-0014191 In Re the Estate of DeVore, Nancy Jeanne

Missing sufficient notice of hearing for spousal property petition. Notice as filed and served states incorrect location information for Department 2. Department 2 is located at Historic Courthouse, 101 Maple Street, Auburn, and not at the Hon. Howard G. Gibson Courthouse in Roseville.

Missing relationship(s) of persons identified in ¶ 9 to decedent.

Clarification is needed: Attachments 7 and 7a are in conflict as to the nature of the interest subject to this proceeding. Attachment 7 identifies a 12.5% interest in 1220 Putnam St, Antioch; Attachment 7a describes property which is not limited to a 12.5% interest. Both attachments fail to state any characterization of the property as either community, quasi-community, or separate.

It is recommended the petition be denied. Petitioner relies on decedent's will, which does not make a gift of the subject property to petitioner as surviving spouse; rather, the will directs the subject property to the trustee of decedent's trust. Relief under Prob.C. § 13650 is limited to a determination of decedent's property passing to surviving spouse. Prob.C. § 13650 does not provide for any determination that property passes to a trustee. It is immaterial that the surviving spouse presently also serves as trustee. Property passing to a trustee is not trustee's individual property. Instead, it will be subject to trust administration (as described at length by petitioner).

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are presented to assist the court and the parties to prepare for the hearing. Local Rule 80.1.4.

11. S-PR-0014192 In Re the Virginia B. Roush Rev Trust

Petition to modify irrevocable trust is recommended for approval as prayed.

12. S-PR-0014193 In Re the Ellard and Michael Roush Exempt Trust

Petition to modify irrevocable trust is recommended for approval as prayed.

13. S-PR-0014194 In Re the Susanne Stafford Trust

Petition to accept trustee resignation and appoint successor trustee without bond is recommended for approval as prayed.

14. S-PR-0014195 In Re the Estate of Farrell, Bryan

Missing sufficient notice of hearing for petition to administer estate. Notice as filed, served, and published states incorrect location information for Department 2. Department

2 is located at Historic Courthouse, 101 Maple Street, Auburn, and not at the Hon. Howard G. Gibson Courthouse in Roseville. The revised notice filed September 18 was not timely served.

15. S-PR-0014196 In Re the Estate of Lasater, Zana Ellen

Missing sufficient notice of hearing for petition to administer estate. Notice as filed, served, and published states incorrect location information for Department 2. Department 2 is located at Historic Courthouse, 101 Maple Street, Auburn, and not at the Hon. Howard G. Gibson Courthouse in Roseville.

Clarification is needed: ¶ 8 identifies decedent's post-deceased spouse. Missing allegations identifying a personal representative or other successor of post-deceased spouse.

Clarification is needed: ¶ 8 identifies two deceased children. Missing allegations establishing whether each child pre- or post-deceased decedent. For any child who predeceased, missing allegations establishing whether predeceased child is survived by issue. For any child who post-deceased, missing allegations identifying a personal representative or other successor.

Missing declaration re terms of beneficiary trust. Local Rule 80.2.1.

16. S-PR-0014197 In Re the David S McDonald & Kathleen L McDonald Rev Trust

Petition to determine trust property is recommended for approval as prayed.

17. S-PR-0014198 In Re the Estate of Lauer, Allen Roy

Petition to administer estate is recommended for approval as prayed.

18. S-PR-0014199 In Re the Estate of Tenzler, Marlene Y.

Missing sufficient notice of hearing for petition to administer estate. Notice as filed, served, **and published** states incorrect location information for Department 2. Department 2 is located at Historic Courthouse, 101 Maple Street, Auburn, and not at the Hon. Howard G. Gibson Courthouse in Roseville.

19. S-PR-0014200 In Re the Estate of Hitchens, Kenneth Leon

Missing sufficient notice of hearing for petition to administer estate. Notice as filed, served, and published states incorrect location information for Department 2. Department

2 is located at Historic Courthouse, 101 Maple Street, Auburn, and not at the Hon. Howard G. Gibson Courthouse in Roseville.

Will is not self-proving (witnesses did not execute any declaration or affidavit).
Missing proof of will.

20. S-PR-0014201 In Re the Mae Essington 2003 Liv Trust

Missing sufficient notice of hearing for petition to instruct trustee. Notice as filed and served states incorrect location information for Department 2. Department 2 is located at Historic Courthouse, 101 Maple Street, Auburn, and not at the Hon. Howard G. Gibson Courthouse in Roseville.

It is recommended the petition for instructions be denied. The petition does not allege facts sufficient to establish that a 2003 trust existed or exists now, or, if it does, that Randy Geering Sr is the trustee. The petition admits that the identification of the trustee is merely presumed by petitioner. Petitioner offers no information about title to the modular home; if it is titled outside the trust, it does not become an asset by operation of the will until the will is probate and the estate is administered. The petition is factually and legally insufficient to support any requested relief.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the court and the parties to prepare for the hearing. Local Rule 80.1.4.

21. S-PR-0014202 In Re the Estate of Gates, Cathy M

Missing sufficient notice of hearing for petition to administer estate. Notice as filed, served, and published states incorrect location information for Department 2. Department 2 is located at Historic Courthouse, 101 Maple Street, Auburn, and not at the Hon. Howard G. Gibson Courthouse in Roseville.

Missing original will, Prob.C. § 8200(a).

22. S-PR-0014203 In Re the Estate of Rutherford, James Jr.

Missing sufficient notice of hearing for petition to administer estate. Notice as filed, served, and published states incorrect location information for Department 2. Department 2 is located at Historic Courthouse, 101 Maple Street, Auburn, and not at the Hon. Howard G. Gibson Courthouse in Roseville.

23. S-PR-0014204 In Re the Estate of Brafford, Thelma Joyce Merie

Missing sufficient notice of hearing for petition to administer estate. Notice as filed, served, and published states incorrect location information for Department 2. Department

2 is located at Historic Courthouse, 101 Maple Street, Auburn, and not at the Hon. Howard G. Gibson Courthouse in Roseville.

Missing declaration re terms of beneficiary trust. Local Rule 80.2.1.

24. S-PR-0014205 In Re the Estate of Taylor, Tommy M Jr

Missing sufficient notice of hearing for petition to administer estate. Notice as filed, served, and published states incorrect location information for Department 2. Department 2 is located at Historic Courthouse, 101 Maple Street, Auburn, and not at the Hon. Howard G. Gibson Courthouse in Roseville.

25. S-PR-0014206 In Re the Estate of Christensen, Katherine L

Petition to administer estate is recommended for approval as prayed.

26. S-PR-0014207 In Re the Levitre Fam Trust

Missing sufficient notice of hearing for petition to determine trust property. Use of mandatory form DE-115 is required. Form DE-120 is insufficient under Prob.C. § 851(c)(1) & (3).

If the court were to determine no further service is required, the following calendar notes are provided:

It is recommended the petition be granted as to the Associated Bank, Blaze CU, and Wings Financial accounts only.

It is recommended the petition be denied as to the Fidelity 401(k) account. Concurrent with execution of the trust, settlors executed a funding document which provides, "Tax-favored assets on which recognition of income has been deferred including but not limited to IRAs, Roth IRAs, qualified plans under IRC §401(a), . . . and qualified deferred compensation shall not be included [as trust assets] pursuant to this comprehensive transfer document and shall not be deemed transferred to the trust." This limitation precludes the requested relief.

Prob.C. § 850 relief as to the Fidelity 401(k) account cannot be supported the pourover will. The pourover will has no effect until probated. "In the absence of any transfer to [a] trust *prior to* [decedent's] death," assets become part of the decedent's estate despite will language expressing decedent's desire that assets be held in trust. *Placencia v. Strazicich* (2019) 42 Cal.App.5th 730, 735 & 743-744 (emphasis added). "It [is] error for the court to award [such property] directly to [a] trust in the absence of a probate proceeding." *Id.*, citing *Estate of Hart* (1957) 151 Cal.App.2d 271, 280-281. See also Prob.C. § 7001. "[A] probate court ha[s] no power to consider the legality of a will until it [is] regularly brought before it by a petition for its probate." *Estate of Burnett* (1935) 6 Cal.App.2d 116, 123.

27. S-PR-0014208 In Re the Estate of Johnson, Eric

Missing notice of hearing for petition to administer estate. Missing proof of service of notice of hearing, if required.

Missing sufficient publication of notice of hearing. Notice as published states incorrect location information for Department 2. Department 2 is located at Historic Courthouse, 101 Maple Street, Auburn, and not at the Hon. Howard G. Gibson Courthouse in Roseville.

Clarification is needed: petitioner alleges there is no surviving spouse, issue, parent, issue of parents, grandparent, issue of grandparents, or issue of predeceased spouse (¶ 6f); alleges that petitioner is a sibling of decedent (¶ 3g(2)(c)); and omits his relationship to decedent in ¶ 8. Siblings are issue of parents (¶ 6b). Missing required allegations at ¶ 7.

28. S-PR-0014376 In Re the Petition of Moreno, Kelley Anne

Appearance is required for continued hearing on petition to establish fact of marriage.